Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1130
Claimant:	Kathleen Garcia
Adjuster:	Alison Sweeney

6 Apr 2024
Claim received for a rear-end collision in which the insured's vehicle was struck from behind while stopped at a traffic signal. Claimant reports a wrist fracture and is represented by counsel, so all contact will go through the attorney's office.

16 Apr 2024
Reviewed the policy and confirmed the driver is named on it and that coverage was in force at the time of loss. Nothing in the file suggests the damage predates the policy start.

12 May 2024
Photos of the rear bumper and trunk area were obtained from the insured and the claimant's side. They confirm several details of the impact, but no independent witnesses have come forward.

3 Jun 2024
Vehicle damage appears mostly consistent with the impact described by both parties. No prior damage to the vehicle is known from our records or from the repair shop's preliminary notes.

12 Jun 2024
Claimant's account of the collision was given in a recorded statement and again in a follow-up call through counsel. The same sequence of events was described each time.

23 Jun 2024
Medical records received show the wrist fracture and a course of treatment that followed a typical pattern, tapering off as the claimant improved. It is not yet clear whether the injury came from this crash.

24 Jun 2024
Prior records show a small strain in the same area several years ago, which resolved fully. Requested further imaging history to determine whether it bears on the current findings.

30 Jun 2024
Still unclear from the statements and photos exactly where the claimant was seated in the vehicle at impact. Asked counsel to clarify the seating position in writing.

31 Jul 2024
Sent a letter to counsel requesting the outstanding medical bills, the proir treatment records, and the claimant's employment information for the wage loss portion of the claim.

22 Sep 2024
Claim remains open pending receipt of the requested records and the mediacl review. Next step is to schedule an independent medical review once the prior treatment file arrives.

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Recorded Statement

Claim number:	C-1130
Statement of:	Kathleen Garcia
Taken by:	Alison Sweeney
Date:	20 Feb 2024

Q: Thanks for taking the time to speak with me today. This recorded statement concerns the rear-end collision you were involved in in Baytown, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please tell me where you were headed when the collision happened.

A: I was driving home from work on a main road heading toward my neighborhood. Traffic had slowed down ahead of me because of a light that had just turned red.

Q: What happened next?

A: I came to a stop behind a car at the light. I had my foot on the brake, and then I felt a hard jolt from behind. My car lurched forward and hit the vehicle in front of me.

Q: Did you see the vheicle that struck you before the impact?

A: Not really. I checked my mirror a moment before I stopped, but I didn't notice anything close behind me. It all happened very fast.

Q: Were you able to drive your car from the scene?

A: No, the front end was damaged and the car wouldn't drive safely, so it had to be towed.

Q: Did you receive medical attention?

A: Yes. I went to the emergency room that evening. They took X-rays and told me my left wrist was fractured. I've been wearing a splint and I'm going to physical therapy.

Q: Is there anything else about the collision you'd like to add?

A: Just that I was wearing my seatbelt and I was stopped completely when I was hit. I want the claim handled as quickly as possible because I'm not able to work my usual shifts right now.

Q: Thank you. That concludes the statement.